

CLIFFORD CHANCE LLP

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1 March 2026

BY EMAIL: claims@firstinsurance.co.uk

Claims Department
First Insurance Group PLC
First Insurance House
14 Fenchurch Avenue
London EC3M 5BS

Re: Policy POL-EA-2026-78432 — Margaret Elaine Chen — Urgent Repatriation Request

Our ref: SC/MC/2026/03847

Dear Sir or Madam,

We act on behalf of Mrs. Margaret Elaine Chen and her family in connection with the above-referenced travel insurance policy and the ongoing medical emergency in Bangkok, Thailand.

As you are aware, our client was admitted to Bumrungrad International Hospital on 27 February 2026 following a cardiac event. She remains hospitalised. A second medical opinion obtained on 1 March 2026 from Dr. Kittisak Prasert at Bangkok Hospital confirms that medical repatriation to London is feasible and advisable.

We note that our client declared her hypertension at the time of purchasing the policy, paid the applicable additional premium of £47.50, and was accepted by your underwriters. She answered all medical screening questions truthfully. Her pre-travel cardiology assessment at the Royal Brompton Hospital on 12 January 2026 cleared her for travel.

We are therefore concerned by any suggestion that Section 14.3 of the policy could be invoked to deny or delay repatriation. We draw your attention to Section 14.4, which provides for case-by-case assessment where a declared condition is a risk factor for, but not the direct cause of, an acute event. We further note that Section 14.5 places the burden of proof on the insurer where a condition was declared and accepted.

Our client's family is understandably distressed by the current situation. Mr. David Chen, who is present at the hospital, has a pre-existing anxiety disorder which is being significantly exacerbated by the uncertainty.

We formally request that repatriation arrangements be confirmed within 72 hours of the date of this letter (i.e., by close of business on 3 March 2026). Failure to do so will be treated as a breach of your duty of care under the Consumer Insurance (Disclosure and Representations) Act 2012 and the FCA's Insurance: Conduct of Business Sourcebook (ICOBS), in particular ICOBS 8.1 (claims handling).

In the event that repatriation is not arranged within the stated timeframe, we have instructions to issue proceedings in the High Court for:

- (a) a mandatory injunction requiring immediate repatriation;
- (b) damages for breach of contract and/or breach of statutory duty;
- (c) aggravated damages for distress caused by unreasonable delay;
- (d) costs on an indemnity basis.

We trust that this matter can be resolved without the need for litigation. We look forward to hearing from you by the stated deadline.

Yours faithfully,

Sophie Chen
Associate, Insurance Litigation
Clifford Chance LLP

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Note: Sophie Chen is acting in a personal capacity on behalf of her mother. This has been disclosed to the firm's conflicts committee and approved under the firm's pro bono and personal interest policy (ref: COI-2026-00219).

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